STANDARD OPERATING PROCEDURE			G-4310
	SARPY COUNTY SHERIFF'S OFFICE PAPILLION * NEBRASKA **GREG LONDON** **SHERIFF**	DATE ISSUED 06/01/06	DATE REVISED **07/28/23**	DATE REVIEWED 02/02/25
		APPROVED: *GREG LONDON*		
CHAPTER TITLE GENERAL	RESOURCES			
SUBJECT CRASHES INVOLVING COUNTY VEHICLES	CROSS REFERENCE G-2100 COMPLAINT PROCEDURE G-2200 DISCIPLINE			

I. Purpose:

The purpose of this policy is to establish the guidelines for investigation of crashes involving county vehicles and to provide recommendations for disciplinary action for employee involved crashes.

II. Policy:

The Sarpy County Sheriff's Office shall ensure impartial investigation of all crashes involving county vehicles. The Sarpy County Sheriff's Office shall not be the sole investigating agency for crashes involving Sheriff's Office employees operating county vehicles and other motorists or property. The Sheriff's Office shall also adopt recommendations for discipline for those employees involved in preventable crashes

III. Procedure:

A. County Vehicles (Not Operated by Sheriff's Office Employees) Involved in a Crash:

1. In the event a county employee (not an employee of the Sheriff's Office) is involved in a crash while operating a county owned vehicle within the Sheriff's Office jurisdiction, a Sarpy County road patrol deputy shall respond and investigate the crash pursuant to established crash investigation guidelines (see P-4000 Traffic Crash Investigation).

a) The investigating deputy shall take photographs of the crash and crash scene.

b) The investigating deputy shall ensure the on-duty supervisor is aware of the crash.

2. The employee involved in the crash shall be responsible for immediate notification of his or her supervisor unless medical condition or injuries render the employee unable to do so. In such cases, the on-duty road patrol supervisor shall have the responsibility of notifying the employee's supervisor.

3. The on-duty supervisor shall also notify the on-duty watch commander or the ADC.

B. **County Snowplows:** In a minor non-injury traffic crash involving county snow removal equipment during times of inclement weather, a Sheriff's Office investigation is not required. Exchanging information and completion of a claim for damage is the responsibility of the snowplow driver and the County Roads Department. In cases involving major property damage or personal injury, a deputy shall conduct a thorough investigation as described in section III, A.

C. **Sheriff's Office Vehicle Involved in a Crash:** All vehicles owned by Sarpy County and operated by Sheriff's Office employees involved in a crash, whether on public or private property, shall be subject to the following procedures. Sheriff's Office employees operating vehicles belonging to outside agencies (i.e., task force, FBI) as part of their official duties shall also abide by the following procedures.

1. Employee Responsibilities:

a) In the event an employee of the Sheriff's Office is involved in a crash while operating a Sheriff's Office vehicle, the employee shall contact his or her supervisor immediately.

b) The employee shall cooperate with the investigating agency.

c) The employee shall obtain a report number and complete an information report regarding the details of the crash. Whenever possible, the report should also contain the following information:

(1) The other motorist's insurance company and address.
(2) The motorist's insurance policy number.
(3) The motorist's agent's name, address, and telephone number and any other local contact information.

d) The employee shall complete an Auto Liability Assignment Notice (i.e., County Vehicle Crash Report) and deliver a copy to the Sheriff's Office Accounts Payable Manager, as soon as possible. If the employee is unable to complete or deliver the form due to

injury, the employee's supervisor shall complete and deliver the form.

2. Supervisor Responsibilities:

a) The supervisor, if on duty, shall immediately respond to the scene to investigate the crash. If the employee's supervisor is unable to respond, the supervisor shall contact another supervisor or command officer to respond.

b) If the crash involves another motorist or damage to non-Sheriff's Office property, the supervisor shall request the agency with jurisdiction complete a state crash report. State Patrol may be requested for crashes outside city limits. The supervisor may investigate the crash if the Sheriff's Office vehicle was the only vehicle involved and there was no damage to other property.

c) The supervisor shall notify the on-duty watch commander or the ADC.

d) The supervisor shall take photographs of the crash and the crash scene.

e) The supervisor shall ensure that the Auto Liability Assignment Notice is completed and delivered to the Sheriff's Office Accounts Payable Manager and that a copy of the crash report is obtained. A copy of the crash report shall also be delivered to the Sheriff's Office Accounts Payable Manager.

f) If the employee does not appear to be at fault for the crash, the supervisor shall complete an Incident Review (see G-2110 Incident Review).

g) If the employee appears to be at fault, the supervisor shall complete a Line Investigation (see G-2100 Complaint Procedure).

h) At fault crashes that involve "serious bodily injury" shall be investigated as an internally originated complaint (see G-2100 Complaint Procedure).

i) The Incident Review or Line Investigation shall include (at the minimum) a copy of the employee's information report, the state crash report, copies of the photographs taken and a written damage estimate.

j) If the vehicle is a Road Patrol Unit, the supervisor shall update the Patrol Unit Damage Log. The date, report number, and description of the damage shall be entered under the appropriate Patrol Unit designation and the log shall be saved.

3. **Disciplinary Recommendations:** The following Crash matrix is provided as a guideline for supervisors to make recommendations for discipline for employees involved in preventable crashes. These recommendations shall not preclude more or less severe sanctions when warranted.

a) The supervisor shall determine if the crash was preventable or nonpreventable.

(1) Generally, preventable crashes directly result from the actions of the employee and/or the employee is listed as being at fault on the state crash report. A crash shall be determined preventable if the employee violated a traffic law, or was found to be inattentive, negligent, or careless.

(2) Generally, non-preventable crashes occur when the employee's actions did not cause and/or could not have prevented the crash (e.g., side of the vehicle is struck by a deer.) Employees involved in non-preventable crashes shall not be subject to discipline (unless other policies or procedures were violated during the incident).

b) The supervisor shall then determine if the employee willfully disregarded a law, policy or procedure.

c) The supervisor shall contact the Administrative Commander to determine if the employee has any crash related disciplinary actions in his or her personnel file.

d) The supervisor shall then consult the crash matrix to determine the level of discipline recommended.

e) The recommended discipline provided by the crash matrix is only for the preventable crash and not for any additional policy or procedure violations.

f) The employee may also be required to attend an appropriate driver training course (at Sheriff's Office expense), or to undergo a fitness for duty examination, in the event of a chronic pattern of preventable crashes.

g) Personal injury crashes are not addressed by the discipline matrix. The Sheriff or his designee shall be free to impose any discipline deemed proper.

h) A supervisor reviewing a crash that scores higher than Level 6 shall be free to recommend any discipline he or she feels is proper.

i) The Sheriff or his designee may modify the recommendation of the supervisor for articulable mitigating or aggravating circumstances.

Crash Discipline Matrix

	Preventable Crash
Crash less than $2500 total damage	Level 1
Crash $2500-$3500 total damage	Level 2
Crash more than $3500 total damage	Level 3

Disciplinary Levels

Level 1	**Letter of Counseling**
Level 2	**Letter of Admonishment**
Level 3	**Letter of Reprimand**
Level 4	**8 Hours of Suspension**
Level 5	**16 Hours of Suspension**
Level 6	**24 Hours of Suspension**

PREVIOUS CRASH

If an employee is involved in a subsequent crash and documentation from a previous crash is still in the employee's personnel file (see G-2200 Discipline), the discipline level for the new crash shall be determined by the matrix plus one (1) for each additional crash in the employee's file {e.g. If an employee is involved in a new Level 1 crash and has a previous crash in his or her file, the new crash shall be a Level 2. The level of the new crash shall be enhanced one level for each previous crash existing in the file regardless of the severity.}